

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Bernardo Gutierrez	Team: Team # 5	CCRB Case #: 201304940	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 05/30/2013 9:59 PM	Location of Incident: § 87(2)(b)	Precinct: 30	18 Mo. SOL 11/30/2014	EO SOL 11/30/2014	
Date/Time CV Reported Fri, 05/31/2013 1:01 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 06/05/2013 11:44 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Steven Moran	02932	947275	030 PCT
2. POM Michael Duchatellier	18345	936525	030 PCT
3. POM Rasau Romeo	21166	945300	PBMN TF

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Helena Ribeiro	30428	941124	PBMN TF

Officer(s)	Allegation	Investigator Recommendation
A.POM Rasau Romeo	Abuse: On May 30, 2013, PO Rasau Romeo threatened to arrest § 87(2)(b)	§ 87(2)(b)
B.POM Rasau Romeo	Abuse: On May 30, 2013, PO Rasau Romeo entered and searched § 87(2)(b) § 87(2)(b) in Manhattan.	§ 87(2)(b)
C.POM Rasau Romeo	Force: On May 30, 2013, PO Rasau Romeo struck § 87(2)(b) with a door.	§ 87(2)(b)
D.POM Rasau Romeo	Discourtesy: On May 30, 2013, PO Rasau Romeo spoke rudely to § 87(2)(b)	§ 87(2)(b)
E.POM Steven Moran	Abuse: On August 8, 2013, PO Steven Moran threatened to arrest § 87(2)(b)	§ 87(2)(b)
F.POM Michael Duchatellier	Abuse: On August 8, 2013, PO Michael Duchatellier threatened to arrest § 87(2)(b)	§ 87(2)(b)

Case Summary

On May 31, 2013, § 87(2)(b) filed this complaint with IAB, generating Log Number 13-23861 (encl. 2A-2C). On June 5, 2013, the complaint was forwarded to the CCRB (encl. 2D-2E). § 87(2)(b) interacted with officers at § 87(2)(b) on May 30, 2013, and August 8, 2013. The following allegations resulted:

Allegation A: Abuse of Authority- On May 30, 2013, PO Rasau Romeo threatened to arrest

§ 87(2)(b) § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)

Allegation B: Abuse of Authority- On May 30, 2013, PO Rasau Romeo entered and searched

§ 87(2)(b) § 87(2)(b) in Manhattan.
Allegation C: Force- On May 30, 2013, PO Rasau Romeo struck § 87(2)(b) **with a door.**
Allegation D: Discourtesy- On May 30, 2013, PO Rasau Romeo spoke rudely to § 87(2)(b)

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Allegation E: Abuse of Authority- On August 8, 2013, PO Steven Moran threatened to arrest

§ 87(2)(b)
Allegation F: Abuse of Authority- On August 8, 2013, PO Michael Duchatellier threatened to arrest § 87(2)(b) § 87(2)(g)

§ 87(2)(b)
§ 87(2)(b)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) old at the time of the incident, is a Hispanic female who is § 87(2)(b) and has black hair and green eyes. § 87(2)(b)
§ 87(2)(b) § 87(2)(b)

CCRB Testimony

On May 31, 2013, § 87(2)(b) provided a statement to IAB when filing her complaint (encl. 2A-2C). § 87(2)(b) provided a statement to the CCRB over the telephone on June 7, 2013 (encl. 2F) and provided a sworn statement on August 12, 2013 (encl. 2G-2M). § 87(2)(g)

On May 30, 2013, at approximately 9:59 p.m., § 87(2)(b) was at her residence, § 87(2)(b) § 87(2)(b) in the Bronx, with her § 87(2)(b) daughter, § 87(2)(b) § 87(2)(b) received a call from a UPS delivery man who asked her if she could take three packages for local residents due to his running behind. She agreed and received the packages. Two of the packages belonged to an individual identified by the investigation as § 87(2)(b) § 87(2)(b) telephone

number was on the boxes. § 87(2)(b) texted her and told her to come pick up her packages and bring identification. § 87(2)(b) became upset and responded that she would call the police.

§ 87(2)(b) came to her apartment and § 87(2)(b) opened the door slightly. § 87(2)(b) was accompanied by another woman who § 87(2)(b) was unable to see in detail. § 87(2)(g) § 87(2)(b) bent down to retrieve the packages and § 87(2)(b) attempted to swing one of her arms into the doorway. She did not make contact with § 87(2)(b) § 87(2)(b) pushed the door with her backside, causing the door to close on § 87(2)(b) hand. § 87(2)(b) opened the door to allow her to remove her hand.

§ 87(2)(b) called 911 and told the operator that a woman tried to attack her. Approximately 15 minutes later, § 87(2)(b) looked at a video feed in her apartment that shows the outside of her building and saw two uniformed officers speaking to § 87(2)(b). She described one of the officers as a black male, approximately 6'2" tall, with a thin build, in his late 20's to early 30's. She provided his shield number in her call to IAB as "1166." The investigation identified this officer as PO Rasau Romeo, of Manhattan North Task Force. She described the other officer as a white female, approximately 5'4" tall, with a stocky build, in her 30's. The investigation identified this officer as PO Helena Ribeiro, of Manhattan North Task Force.

The officers knocked on § 87(2)(b)'s door. § 87(2)(b) opened the door completely and held it open with a foot. § 87(2)(b) told the officers that she had been expecting them and asked PO Romeo to enter, since § 87(2)(b) who was in the hallway, was making a lot of noise. PO Romeo began to yell at § 87(2)(b) stating that the officers knew "everything," that § 87(2)(b) had the packages and that detectives would be at her residence the following day to arrest her.

§ 87(2)(b) denied yelling at PO Romeo. PO Romeo told her that the officers would return and arrest her at a later time. § 87(2)(b) asked PO Romeo again if he wished to enter her apartment. During her CCRB interview, § 87(2)(b) initially stated that PO Romeo responded, "no" when she asked him this question. She later stated that he did not respond directly to this question but repeatedly stated that § 87(2)(b) would be arrested.

At this point, § 87(2)(b) attempted to close the door by releasing her foot from the door and pushing it with her body weight. She closed the door because she felt that the officer would not assist her and feared that she would be arrested. As the door was closing, PO Romeo placed his right foot and one of his forearms between the door and the doorway. This action caused the door to move backwards and strike § 87(2)(b) on the bridge of the nose, causing a bruise and a scratch. She did not seek medical attention for this.

No part of PO Romeo's body had been in the doorway before his sticking his arm and leg in. § 87(2)(b) opened the door slightly and banged it against PO Romeo's limbs repeatedly by pushing it with her backside. § 87(2)(b) wished to hurt PO Romeo with the door and "teach him a lesson." PO Romeo pulled his body out of the doorway. § 87(2)(b) heard PO Romeo scream, "This fucking bitch" approximately three times.

Approximately 30 minutes later, § 87(2)(b) heard a knock and opened the door slightly, believing that additional officers had responded. § 87(2)(b) saw that it was PO Romeo. In her statement to IAB and CCRB telephone statement, she stated that PO Romeo attempted to hold the door open during this second visit and did not mention his doing so during the first visit. She asked PO Romeo if he wanted to be "beat up" again and pushed the door closed. She sustained scratches to both forearms and her right palm during her frenzy to lock the door.

§ 87(2)(b) who was hysterical at this point called Internal Affairs. PO Romeo was banging on the door and was "talking shit." § 87(2)(b) was unable to specify and stated that she had not been paying attention to what he had been saying. PO Romeo's behavior was audible on the telephone and the IAB officer told her to move away from the door. No additional officers responded.

While providing her sworn statement on August 12, 2013, § 87(2)(b) made an additional complaint. She made no mention of this incident at any other point in time. § 87(2)(b) was fired as superintendent of § 87(2)(b) and received an eviction notice regarding her basement apartment, § 87(2)(b) which she had access to as a perk of being a superintendent.

On August 8, 2013, at approximately 2:31 p.m., § 87(2)(b) called police after realizing that her key did not open the basement apartment door. The entrance to this apartment is in within an outdoors alleyway. She called her roommates, § 87(2)(b) and § 87(2)(b) to the scene. The new superintendent, § 87(2)(b) and two uniformed officers responded. She described one officer as a bald black male with a moustache, approximately 5'5" tall, overweight, in his 40's. The investigation identified this officer as PO Michael Duchatellier, of the 30th Precinct. She described the other officer as a white male with brown hair, taller than 5'5" tall, with a muscular build, in his 20's. This officer was identified as PO Steven Moran, of the 30th Precinct.

§ 87(2)(b) complained that the officers initially agreed with her, as the eviction notice gave her until August 31, 2013, to leave, but later told her that the situation had changed upon their learning that she had been fired. Both officers told § 87(2)(b) that they would arrest her if she said another word. § 87(2)(b) overheard one of the officers tell § 87(2)(b) that they would arrest him if he made a copy of the apartment keys for § 87(2)(b). She was unsure which one of the officers told him this.

Witness: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) at the time of the incident, is a Hispanic female who is approximately § 87(2)(b) and has black hair and brown eyes. § 87(2)(b) resided at § 87(2)(b) in Manhattan. She is § 87(2)(b)'s daughter.

CCRB Testimony

On August 12, 2013, § 87(2)(b) was interviewed at the CCRB (encl. 3A-3C). On May 30, 2013, at approximately 9:59 p.m., § 87(2)(b) was at her residence with her mother, § 87(2)(b). A woman identified by the investigation as § 87(2)(b) came to the apartment door and § 87(2)(b) opened the door to give her a package. When she opened the door, § 87(2)(b) reached into the apartment with one arm in a grabbing motion. § 87(2)(b) then called the police.

A male officer identified by the investigation as PO Romeo responded and was making a lot of noise. § 87(2)(b) asked the officer more than once if he wished to enter the residence and he refused. § 87(2)(b) tried to close the door and he tried to place his foot in the doorway, causing the door to recoil backwards and strike § 87(2)(b) on her arms, nose and right palm. The officer left for some time and returned. The officer told § 87(2)(b) that he would arrest her the second time that he came to the door. § 87(2)(b) did not mention PO Romeo cursing.

Witness: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) at the time of the incident, is a black female. § 87(2)(b) has no relation to § 87(2)(b) and did not reside in the same building.

CCRB Testimony

On October 2, 2013, § 87(2)(b) was contacted by telephone and she provided a statement (encl. 3F). On May 30, 2013, at approximately 6 p.m., § 87(2)(b) who was expecting a UPS package, went on the UPS website and saw that an individual named § 87(2)(b) had signed for her

package. She spoke to her building manager, who was familiar with § 87(2)(b) and provided her address. The investigation determined the building as § 87(2)(b). § 87(2)(b) went to the building and rang the intercom. § 87(2)(b) did not respond but text messaged her, stating that she refused to bring § 87(2)(b) laptop downstairs and instructing § 87(2)(b) to bring identification. § 87(2)(b) refused to bring any identification with her, since § 87(2)(b) had signed for the package herself without presenting identification. § 87(2)(b) went to § 87(2)(b)'s apartment door at approximately 8 p.m. and knocked on the door, which was not opened.

At approximately 9:59 p.m., § 87(2)(b) flagged down a marked police vehicle with two uniformed officers, identified by the investigation as PO Romeo and PO Ribeiro. § 87(2)(b) explained that she had ordered a laptop and that § 87(2)(b) had signed for it but refused to bring it downstairs.

§ 87(2)(b) entered the building with the officers as an individual was exiting. The officers knocked on § 87(2)(b)'s apartment door and identified themselves. PO Romeo asked that the door be opened. § 87(2)(b) yelled that she would not open the door and stated that she would call internal affairs.

§ 87(2)(b) was present with the officers in the hallway for approximately 20 minutes, during which time § 87(2)(b) refused to open the door. At one point, PO Romeo told § 87(2)(b) that she would be arrested upon exiting the apartment. § 87(2)(b) believed that PO Romeo said this due to the fact that § 87(2)(b) was refusing to open the door and cooperate.

The officers told § 87(2)(b) to go back downstairs. As she was walking back downstairs, § 87(2)(b) heard a door slam. She did not see either officer attempt to enter the apartment. § 87(2)(b) did not hear either officer use profanity against § 87(2)(b) and did not hear either officer say, "This fucking bitch." § 87(2)(b) package was given to her by her building manager the following day.

Witness: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) at the time of the August 8th incident, is a black male. § 87(2)(b) was renting an apartment from § 87(2)(b) at the time.

CCRB Testimony

On September 3, 2013, § 87(2)(b) was contacted by telephone and he provided a statement (encl. 3D). On August 8, 2013, at approximately 3:42 p.m., § 87(2)(b) received a call from the superintendent of his building at the time, § 87(2)(b). § 87(2)(b) had been renting out the basement apartment of the building, § 87(2)(b), to § 87(2)(b) and several other individuals. § 87(2)(b) told § 87(2)(b) that the locks to the apartment had been changed.

§ 87(2)(b) called 911 and explained that the locks had been changed despite his being a tenant. He arrived at the scene and spoke with two uniformed officers, identified by the investigation as PO Michael Duchatelier and PO Steven Moran, both of the 30th Precinct. § 87(2)(b) did not provide a physical description for the officers. § 87(2)(b) and the new superintendent, § 87(2)(b), also responded.

Some words were exchanged between the officers, § 87(2)(b) and § 87(2)(b) regarding access to the apartment. One of the officers told § 87(2)(b) that he had to give § 87(2)(b) a key since he was still a tenant. He complied and gave § 87(2)(b) a key. § 87(2)(b) went inside of the apartment.

Within the hour, § 87(2)(b) heard voices outside and exited the apartment. He saw that the officers had returned. § 87(2)(b) and § 87(2)(b) were present at this point. He

did not know why the officers had returned. § 87(2)(b) argued over her having a right to access the apartment. The officers told § 87(2)(b) that the situation needed to be resolved in court and left. Neither officer told § 87(2)(b) during the incident that he could be arrested. He could not recall if either officer told § 87(2)(b) that she could be arrested.

Witness: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) at the time of the August 8th incident, is a black male. § 87(2)(b) was renting an apartment from § 87(2)(b) at the time.

CCRB Testimony

On September 4, 2013, § 87(2)(b) called the CCRB and provided a statement (encl. 3E). On August 8, 2013, at approximately 3:42 p.m., § 87(2)(b) came to his residence, the basement apartment of § 87(2)(b) in Manhattan. He was informed by the superintendent at the time, § 87(2)(b) that he had changed the apartment's lock.

§ 87(2)(b) and several other individuals had been renting the apartment from the previous superintendent, § 87(2)(b) who had since been fired. § 87(2)(b) informed § 87(2)(b) that he had called police because § 87(2)(b) had threatened to break the basement door. § 87(2)(b) waited with § 87(2)(b) until two officers responded. He described one of the officers as a light skinned Hispanic male with salt and pepper hair, approximately 6 feet tall, with a stocky build, approximately 40 years old. The investigation identified this officer as PO Duchatellier. He described the other officer as a white male with dark colored hair, approximately 6'1" tall, with a thin build, approximately 25 years old. The investigation identified this officer as PO Moran.

§ 87(2)(b) came to the location and claimed that the apartment belonged to her. PO Duchatellier told § 87(2)(b) to calm down and asked her to show a proof of ownership. § 87(2)(b) § 87(2)(b) responded that it was with her lawyer. PO Duchatellier told her that she would be arrested if the officers were called to the scene again. Both officers were very professional, patient and full of restraint. § 87(2)(b) felt that they could have arrested § 87(2)(b) who was being aggressive, verbally abusive, and gesticulated. § 87(2)(b) refused to listen to what the officers were saying. § 87(2)(b) led § 87(2)(b) into the apartment. § 87(2)(b) later came and told § 87(2)(b) that the situation had been resolved.

NYPD Statements

Subject Officer: PO RASAU ROMEO

- PO Romeo, § 87(2)(b) old at the time of the incident, is a black male who is § 87(2)(b) and has black hair and brown eyes.
- On May 30, 2013, PO Romeo was assigned to Manhattan North Task Force patrol in the vicinity of the 30th Precinct in uniform from 5:30 to 2:05 a.m. He was partnered with PO Helena Ribeiro and was assigned to marked RMP 3132.

Memo Book

At 9:59 p.m. PO Romeo responded to a pickup regarding stolen property at § 87(2)(b). At 10:10 p.m., the suspect refused to answer the door. At 10:30 p.m., a complaint report was prepared and PO Romeo resumed patrol (encl. 4A-4C).

Complaint Report § 87(2)(b)

§ 87(2)(b) alleged that a suspect signed for and is in possession of a UPS package containing a laptop computer. It is noted that § 87(2)(b) had text messages from the suspect, who stated that she had the package (encl. 4D-4F).

CCRB Testimony

On December 13, 2013, PO Romeo was interviewed at the CCRB (encl. 4G-4I). On May 30, 2013, at approximately 9:59 p.m., PO Romeo was flagged down in his vehicle by § 87(2)(b) next to § 87(2)(b). § 87(2)(b) stated that an individual had signed for and taken her UPS package, which contained a Macbook laptop. The investigation identified this individual as § 87(2)(b).

§ 87(2)(b) showed the officers texts from § 87(2)(b) which showed that she had taken the laptop. A text from § 87(2)(b) noted something to the effect of her giving the laptop to § 87(2)(b) at a later time. § 87(2)(b) was asked for proof of ownership for the package. § 87(2)(b) showed the officers the tracking invoice from UPS showing a serial number and item information.

After speaking to § 87(2)(b) for about 5 minutes, the officers went up to § 87(2)(b)'s apartment door. § 87(2)(b) gave the officers her address after going up to her apartment earlier in the day. § 87(2)(b) remained downstairs. PO Romeo knocked on the door and § 87(2)(b) opened it. PO Romeo asked § 87(2)(b) if she had the laptop. § 87(2)(b) asked why PO Romeo was there and immediately slammed the door in his face. PO Romeo denied saying anything else prior to her slamming the door. § 87(2)(b) did not say anything else prior to slamming the door.

PO Romeo did not attempt to prevent the door from closing in any manner. He denied placing any part of his body between the door and doorway to prevent it from closing. PO Romeo was unaware of the door striking § 87(2)(b) on any part of her body. She did not complain of sustaining any injuries.

After she closed the door, § 87(2)(b) yelled and said she did not have to speak to him, that she wanted his badge number and that she would call a lieutenant. PO Romeo knocked again and stated that if she did have the laptop, she could potentially be arrested for criminal sale of stolen property since the laptop did not belong to her. He denied telling her that she would in fact be arrested. PO Romeo based this on the texts that seemed to indicate that she was in possession of § 87(2)(b) laptop. The door was not reopened during the incident at any time.

PO Romeo did not sustain any physical injuries as a result of this job. PO Romeo denied himself or his partner using profanity. He denied himself or his partner saying, "This fucking bitch." PO Romeo was in front of the apartment for less than five minutes, at which point he went downstairs and created a complaint report in regard to the incident. PO Romeo did not return to the residence at any point on this evening.

Subject Officer: PO STEVEN MORAN

- *PO Moran, § 87(2)(b) old at the time of the incident, is a Hispanic male who is § 87(2)(b) and has brown hair and hazel eyes.*
- *On August 8, 2013, PO Moran was assigned to 30th Precinct Sectors D and E in uniform from 3 p.m. to 11:35 p.m. He was partnered with PO Michael Duchatellier and was assigned to marked RMP 3071.*

Memo Book

At 3:45 p.m., PO Moran responded to a call of harassment at § 87(2)(b). At 4:09 p.m., the job was closed as "non-crime corrected." At 4:20 p.m., he responded to the

same location regarding a harassment call. At 4:55 p.m., the complaint was referred to landlord-tenant court (encl. 6A-6C).

CCRB Testimony

On November 21, 2013, PO Moran was interviewed at the CCRB (encl. 6D-6E). On August 8, 2013, at approximately 3:45 p.m., PO Moran arrived at the location with PO Duchatellier. They spoke to § 87(2)(b) in front of the building. She complained that she was unable to gain entry into a basement apartment. As she stated that no one was in the basement apartment at the time, the officers left.

The officers returned upon being called back at approximately 4:20 p.m. PO Moran believed that a tenant had called this second time. On this visit, § 87(2)(b) stated that she owned the basement apartment and therefore had a right to enter every room within.

§ 87(2)(b) was screaming and stated that she wanted access to the apartment. § 87(2)(b) informed the officers that § 87(2)(b) was subletting the apartment. § 87(2)(b) felt harassed because § 87(2)(b) insisted on having access to the apartment. § 87(2)(b) was irate and irrational and screamed at everyone present.

The officers informed her that she could not go into § 87(2)(b)'s room, for which he was entitled to privacy. The officers asked her to show proof of ownership of the apartment, which she did not provide. § 87(2)(b) did not commit any arrestable offenses. Neither officer told her that she could be arrested. The officers referred § 87(2)(b) to landlord tenant court and left.

Subject Officer: PO MICHAEL DUCHATELLIER

- PO Duchatellier, § 87(2)(b) old at the time of the incident, is a black male who is § 87(2)(b) is bald and has brown eyes.
- On August 8, 2013, PO Duchatellier was assigned to patrol of 30th Precinct Sectors D and E in uniform from 3 p.m. to 11:35 p.m. He was partnered with PO Steven Moran and was assigned to marked RMP 3071.

Memo Book

At 3:42 p.m., PO Duchatellier responded to a past dispute regarding an illegal eviction at § 87(2)(b). At 3:49 p.m., the job was closed as non-crime corrected. At 4:20 p.m., he responded to a past dispute at the same location. At 4:55 p.m., the job was referred to landlord-tenant court (encl. 7A-7C).

CCRB Testimony

On December 2, 2013, PO Michael Duchatellier was interviewed at the CCRB (encl. 7D-7E). On August 8, 2013, at approximately 3:42 p.m., PO Duchatellier responded to the location. A male complainant, identified by the investigation as § 87(2)(b) stated that he could not access his apartment because the landlord, identified by the investigation as § 87(2)(b) wished to change his locks and gain entry into his apartment.

§ 87(2)(b) who claimed to be the landlord, demanded to have access to the apartment. PO Duchatellier could not recall either party's demeanor. Neither party did anything for which they could have been arrested. PO Duchatellier did not recall himself or PO Moran informing § 87(2)(b) that she could be arrested for any reason, including if the officers had to respond a third time. He denied himself or PO Moran telling § 87(2)(b) that she would be arrested if she said another word. PO Duchatellier told § 87(2)(b) that she had no right to change § 87(2)(b)'s locks or go into his apartment and that she would have to go to landlord tenant court if she wished to dispute this.

Witness Officer: PO HELENA RIBEIRO

- *PO Ribeiro, § 87(2)(b) old at the time of the incident, is a white female who is § 87(2)(b) and has brown hair and brown eyes.*
- *On May 30, 2013, PO Ribeiro was assigned to patrol with Manhattan North Task Force in uniform from 5:37 until 2 a.m. She was partnered with PO Rasau Romeo and was assigned to marked vehicle 3132.*

Memo Book

At 9:59 p.m., PO Ribeiro responded to a pickup regarding stolen property at § 87(2)(b). At 10:30 p.m., she created a complaint report and resumed patrol (encl. 5A-5C).

CCRB Testimony

On January 14, 2014, PO Helena Ribeiro was interviewed at the CCRB (encl. 5D-5E). § 87(2)(g) On May 30, 2013, at approximately 9:59 p.m., the officers were waved down by § 87(2)(b) who was unaccompanied. § 87(2)(b) showed the officers text messages which showed that § 87(2)(b) had confirmed that she had her package but would not return it. § 87(2)(b) also showed the officers an electronic receipt from UPS on her telephone. § 87(2)(b) provided § 87(2)(b)'s address.

PO Ribeiro stood behind PO Romeo at an angle in which she could see the doorway, but was unable to see who was inside. She heard a female voice. PO Romeo told § 87(2)(b) that someone had told officers that she had sent texts confirming that she had someone else's package. § 87(2)(b) slammed the door, cursed at officers and stated that she would call a lieutenant. PO Romeo did not attempt to prevent the door from closing. PO Ribeiro denied PO Romeo placing an arm or leg in the doorway, causing it to recoil and strike § 87(2)(b).

PO Ribeiro was unsure if PO Romeo informed the female that she could be arrested. She denied him telling her that she would in fact be arrested. PO Romeo did not use any profanity. He did not say, "This fucking bitch." The door was not reopened at any point.

NYPD Documents

Event and Communications CD- § 87(2)(b)

On May 30, 2013, a female caller, identified by the investigation as § 87(2)(b) calls 911 to state that a female has taken her UPS package and refuses to return it. At 9:20 p.m., § 87(2)(b) states that § 87(2)(b) was downstairs and was threatening to call the police. Officers were dispatched at 9:32 p.m. and arrived at 10:06 p.m. At 10:27 p.m., § 87(2)(b) calls back and demands to speak to Internal Affairs. She complains that an officer told her that she would be arrested. She speaks to an operator who leaves a message with IAB on § 87(2)(b)'s behalf after no one answers.

At 11:07 p.m., Task Force "3132" asks that a dispute job be marked with a complaint report having been prepared and asks for a SPRINT number. An officer specifies that the job took place at § 87(2)(b) and the SPRINT number "§ 87(2)(b)" is provided. The job is closed at 11:08 p.m. (encl. 8A-8D).

Events § 87(2)(b) and § 87(2)(b)

On August 8, 2013, male caller § 87(2)(b) calls 911 to state that a female, identified by the investigation as § 87(2)(b) was trespassing inside of the basement. The job was added at 2:40 p.m. Officers arrived at 2:44 p.m. and the job was closed at 3 p.m. The "primary unit" shown as responding is 30th Precinct conditions (encl. 8E-8F).

At 3:38 p.m., a male caller noted on the event as § 87(2)(b) identified by the investigation as § 87(2)(b) calls 911 to state that the lock to his door has been changed. Officers arrive at 3:53 p.m. and the job is closed at 4:09 p.m. The "primary unit" shown as responding is Sector 30D (encl. 8G-8H).

30th Precinct Roll Call- August 8, 2013

PO Moran and PO Duchatellier are partnered and assigned to Sectors D and E (encl. 8I).

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York for either incident as of January 14, 2013, over eight months after the filing deadline for the first incident and over two months after the deadline for the second incident (encl. 10).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

■

Civilians CCRB History

- § 87(2)(b) filed the following other CCRB complaint (encl. 1D).

○ § 87(2)(b)

Subject Officer CCRB Histories

- PO Romeo has been a member of the service for six years with no substantiated CCRB allegations made against him (encl. 1A).
- PO Moran has been a member of the service for five years with no substantiated CCRB allegations made against him (encl. 1B).
- PO Duchatellier has been a member of the service for nine years with no substantiated CCRB allegations made against him (encl. 1C).

Allegations Not Pleaded

§ 87(2)(b) alleged that the officers told § 87(2)(b) that he would be arrested if he gave § 87(2)(b) keys to the apartment. § 87(2)(b) denied this occurring in his telephone statement. § 87(2)(g)

Conclusion

Identification of Subject Officers

§ 87(2)(b) described the officer who allegedly threatened to arrest her, moved himself inside her apartment, causing her door to hit her and said "this fucking bitch" on May 30, 2013, as a black male, approximately 6'2" tall, with a thin build, in his late 20's to early 30's. She provided his shield number in the call to IAB as "1166." The event related to this incident showed that an

officer assigned to a task force handled the job. A search of CTS using the provided shield number provided PO Romeo, Shield Number 21166, assigned to Manhattan North Task Force. PO Romeo, a § 87(2)(b) old black male, fit the description provided by § 87(2)(b) and acknowledged interacting with her at the scene. § 87(2)(g)

§ 87(2)(b) stated that two officers who arrived to the building on August 8, 2013, threatened to arrest her. She described one officer as a bald black male with a moustache, approximately 5'5" tall, overweight, in his 40's and the other as a white male with brown hair, taller than 5'5" tall, with a muscular build, in his 20's. The final event in regards to this location on August 8, 2013, showed the primary unit responding as 30th Precinct Sector D. The roll call assignments and CTS showed that both officers matched the description provided by § 87(2)(b) with the exception that PO Moran is a light skinned Hispanic, and not white. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A: Abuse of Authority- On May 30, 2013, PO Rasau Romeo threatened to arrest

§ 87(2)(b)

§ 87(2)(b) stated that shortly after she opened the door for PO Romeo and PO Ribeiro, PO Romeo told her that he was aware of her possessing the UPS package and that the officers would return at a later time to arrest her.

§ 87(2)(b)'s daughter, § 87(2)(b) stated that PO Romeo returned at a later time after the door had been closed and told § 87(2)(b) that he would arrest her. § 87(2)(b) who stated that she was present with the officers for 20 minutes, during which time § 87(2)(b) refused to open the door, stated that PO Romeo told § 87(2)(b) that she would be arrested once she exited her apartment.

PO Romeo stated that after § 87(2)(b) closed her door, he knocked again and told § 87(2)(b) that she could hypothetically be arrested since the laptop did not belong to her. He based this on the texts that § 87(2)(b) showed him, which seemed to indicate that § 87(2)(b) possessed the laptop. He denied telling her that she would, in fact be arrested. PO Ribeiro could not recall if PO Romeo told § 87(2)(b) that she could be arrested and denied him telling her that she would in fact, be arrested.

§ 87(2)(g)

Allegation B: Abuse of Authority- On May 30, 2013, PO Rasau Romeo entered and searched § 87(2)(b) in Manhattan.

Allegation C: Force- On May 30, 2013, PO Rasau Romeo struck § 87(2)(b) with a door.

Allegation D: Discourtesy- On May 30, 2013, PO Rasau Romeo spoke rudely to § 87(2)(b)

§ 87(2)(b) stated that upon her closing her door, PO Romeo placed his right foot and a forearm in the doorway, causing the door to recoil backwards and strike her in the nose. § 87(2)(b) stated that this caused a bruise and scratch on the bridge of her nose. She did not seek medical attention for this injury and did not provide evidence of these injuries. § 87(2)(b) stated that she repeatedly banged the door against PO Romeo's limbs with the intent of causing harm and that he screamed "This fucking bitch" in response.

§ 87(2)(b)'s daughter, § 87(2)(b)-old § 87(2)(b) reiterated PO Romeo placing a foot in the doorway, causing the door to move backwards and strike § 87(2)(b) § 87(2)(b) stated that after accompanying the officers in front of § 87(2)(b)'s closed door for about 20 minutes, she was instructed to go back downstairs. She stated that she heard a door slam while on her way down. § 87(2)(b) denied seeing either officer attempt to enter the apartment. § 87(2)(b) did not hear either officer use profanity and did not hear either one say, "this fucking bitch."

PO Romeo testified that § 87(2)(b) briefly opened her door upon his knocking, but that she quickly slammed the door in his face upon his asking if she was in possession of § 87(2)(b) laptop. PO Romeo and PO Ribeiro denied PO Romeo attempting to prevent the door from closing in any manner, including his placing any part of his body in the doorway. Both officers denied the door recoiling back and striking § 87(2)(b) PO Romeo and PO Ribeiro denied the door being opened at any point after it being slammed shut. Both officers denied PO Romeo saying, "This fucking bitch."

§ 87(2)(g)

Allegation E: Abuse of Authority- On August 8, 2013, PO Steven Moran threatened to arrest § 87(2)(b)

Allegation F: Abuse of Authority- On August 8, 2013, PO Michael Duchatellier threatened to arrest § 87(2)(b)

§ 87(2)(b) stated that on August 8, 2013, PO Moran and PO Duchatellier threatened to arrest her if she "said another word" after they had been called regarding § 87(2)(b) having access to the basement apartment of § 87(2)(b) § 87(2)(b)

§ 87(2)(b) who had been subletting the basement apartment from § 87(2)(b) acknowledged being present for this interaction. He could not recall whether § 87(2)(b) was told that she could be arrested. The other tenant, § 87(2)(b) stated that PO Duchatellier told § 87(2)(b) that she would be arrested if the officers were called back to the scene. § 87(2)(b) described the officers as professional, patient and full of restraint. § 87(2)(b) described § 87(2)(b)'s demeanor as aggressive and verbally abusive. § 87(2)(b) apparently refused to listen to the officers.

PO Duchatellier did not recall himself or PO Moran informing § 87(2)(b) that she could be arrested for any reason, including if the officers had to respond a third time. He denied himself or PO Moran telling § 87(2)(b) that she would be arrested if she said another word. PO Moran denied § 87(2)(b) committing any arrestable offenses and denied either officer telling her that she could be arrested.

§ 87(2)(g)

Team: 5

Investigator:	_____	Bernardo Gutierrez	1/27/14
	Signature	Print	Date
Supervisor:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date